

4-960.2. Affirmation in support of expungement; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO
COUNTY OF _____
_____, JUDICIAL DISTRICT COURT

In re _____, Petitioner. No.

AFFIRMATION IN SUPPORT OF EXPUNGEMENT
(Upon Release without Conviction)

I, _____, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction), and hereby affirm the following:

☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

OR

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court: _____

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

(Petitioner Signature) (Print Name)

Street Address City State Zip Code

(Telephone)

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[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]

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